

IN THE SUPERIOR COURT OF FULTON COUNTY, GEORGIA
136 PRYOR STREET, ROOM C-103, ATLANTA, GEORGIA 30303
SUMMONS

<u>APPEN MEDIA GROUP, INC.</u>	) Case	2023CV380049
	) No.:	
<u>d/b/a Sandy Springs Crier</u>	)	
Plaintiff,	)	
	)	
vs.	)	
<u>THE CITY OF SANDY SPRINGS, GEORGIA</u>	)	
	)	
<u>d/b/a The Sandy Springs Police Department</u>	)	
Defendant	)	
	)	
	)	
	)	
	)	

TO THE ABOVE NAMED DEFENDANT(S): The City of Sandy Springs, Georgia d/b/a The Sandy Springs Police Department

You are hereby summoned and required to file electronically with the Clerk of said Court at <https://efilega.tylerhost.net/ofswb> (unless you are exempt from filing electronically) and serve upon plaintiff's attorney, whose name and address is:

Brooks K. Hudson
HULL BARRETT, P.C.
P. O. Box 1564
Augusta, GA 30903-1564
(706) 722-4481

An answer to the complaint which is herewith served upon you, within 30 days after service of this summons upon you, exclusive of the day of service; unless proof of service of this complaint is not filed within five (5) business days of such service. Then time to answer shall not commence until such proof of service has been filed. **IF YOU FAIL TO DO SO, JUDGMENT BY DEFAULT WILL BE TAKEN AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.**

5/12/2023
This _____ day of May, 20 23

Honorable Cathelene "Tina" Robinson
Clerk of Superior Court

By Jessie M. Reyes
Deputy Clerk

To defendant upon whom this petition is served:

This copy of complaint and summons was served upon you _____, 20____

Deputy Sheriff

IN THE SUPERIOR COURT FOR THE
COUNTY OF FULTON, STATE OF GEORGIA

APPEN MEDIA GROUP, INC. d/b/a
Sandy Springs Crier

Plaintiff,

V.

THE CITY OF SANDY SPRINGS,
GEORGIA. d/b/a The Sandy Springs
Police Department,

Defendant.

CIVIL ACTION 2023CV380049
FILE NO. _____

VERIFIED COMPLAINT

NOW COMES Appen Media Group, Inc., d/b/a the *Sandy Springs Crier*, a weekly newspaper published in Alpharetta, Georgia, and for its Complaint shows the Court as follows:

I. JURISDICTION AND VENUE

1. Appen Media Group, LLC has its principal place of business in Alpharetta, Georgia, and publishes the *Sandy Springs Crier* newspaper (hereinafter the “Newspaper”) in Alpharetta, Georgia, and distributes the same in Sandy Springs, Georgia and surrounding communities.

2. The Defendant is the City of Sandy Springs, Georgia, that operates the Sandy Springs Police Department ("Sandy Springs"), and is subject to jurisdiction and venue in this Court.

3. The Sandy Springs Police Department is a department of the City of Sandy Springs government and is headed by the Chief of Police, Kenneth DeSimone.

4. This Court has jurisdiction to hear and decide this Petition and venue is proper in this Court under the facts and circumstances alleged herein.

II. STATEMENT OF FACTS

5. In October of 2022, the Newspaper began making open records' requests ("Requests") to Sandy Springs for incident reports related to arrests made by the Sandy Springs Police Department ("Police").

6. The Newspaper would monitor websites belonging to Sandy Springs and other sources to see arrests made and incidents that occurred where the Police responded. An example of the site maintained by Sandy Springs that lists arrests and incidents that have occurred can be found at the following online address:

<https://p2c.sandyspringsga.gov/Summary.aspx>.

7. The Newspaper would then request the incident reports from Sandy Springs that correlate to the arrest or incident they wanted additional information about. All requests are made online through Sandy Springs' JustFOIA portal (the "Portal"). Requests are then filled via the Portal by the Assistant City Clerk, Karina Reyna, or other individuals in the City Clerk's office.

8. Upon information and belief, there is a contact person at the Sandy Springs' Police Department that actually supplies the requested reports to the Clerk.

9. In requesting the incident reports from Sandy Springs, the Newspaper has asked for arrest reports, including any supplemental reports or narratives from the reporting officer. Sandy Springs will then provide the Newspaper with an incident report

that either has no narrative, or a one-line narrative that gives little to no detail about the incident.

Some examples are below:

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-002392

Sandy Springs Police Department

NARRATIVE

On 03/03/2023 at approximately 0010 hours I was dispatched to a dispute call at 1165 Springwood Connector apartment 344.

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-002448

Sandy Springs Police Department

NARRATIVE

On 03/04/2023 at 4:31 hours I was dispatched to a domestic at 806 Hampton Drive.

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000245

Sandy Springs Police Department

NARRATIVE

On 1-7-2023, I conducted a traffic stop on 400 South Hammond Drive.

The full copies of what was provided to the Newspaper, as well as additional examples of the same, are attached hereto as Exhibit "A."

10. In addition, many of the reports received from Sandy Springs are also redacted, in addition to including the short and non-descriptive narratives. (See Exhibit "A").¹

¹ The Newspaper has on a few occasions received a "reporting officer narrative" with a detailed description of the incident at issue. On the rare occasion this occurs, it deals with a situation where there is no follow up needed, such as a "person dead" report.

11. On November 22, 2022, the Newspaper brought the issue with the reports to the city clerk. The clerk encouraged the Newspaper to discuss the issue with Sgt. Matthew McGinnis of the Sandy Springs Police Department (“SSPD”), Sgt. McGinnis informed the Newspaper that the incident reports are not released and that has always been the policy of the SSPD. The Newspaper was instructed to further address the matter with the city attorney.

12. Based on the conversation with Sgt. McGinnis, on November 28, 2022, the Newspaper called Kathy Williams, a staff attorney with the office of the city attorney for Sandy Springs to discuss Sandy Springs’ failure to provide the complete incident reports.

13. The Newspaper then followed up with an email to Ms. Williams the next day, including examples of incident reports that only contained one-line narratives. In the email, the Newspaper referenced the fact they had previously spoken with Sgt. McGinnis of the SSPD and was told that the City’s position is that the narratives from the initial incident reports are exempt from the Open Records’ Act – a position echoed by the City Attorney.

14. In email correspondence to the City Attorney, the Newspaper also included an excerpt from “A Law Enforcement Officer’s Guide to Open Records in Georgia,” a publication by the Georgia Attorney General’s Office, the Georgia Association of Chiefs of Police, the GBI, the Georgia Sheriff’s Association, the Georgia Department of Public Safety, among other organizations, that states as follows: “Initial incident reports and police arrest reports are subject to the [Open Records] Act’s

disclosure requirement, regardless of whether they are part of an active investigation. Additionally, any report entitled a 'supplemental report,' 'narrative report,' or similar document name that is produced as part of an initial incident report or can be characterized as such, is likewise to be disclosed."

15. After failing to receive a response, the Newspaper sent another email the following day to Ms. Williams requesting an update. Ms. Williams responded that she had yet to speak with the City Attorney but would do so tomorrow. She also requested the Newspaper send any opinions interpreting the provision cited above from the referenced publication.

16. In response, the Newspaper sent a follow up email on December 1, 2022 with the information requested by the office of the City Attorney, specifically correspondence with the office of the State Attorney General concerning the open records' act violations.

17. On December 2, 2022, Ms. Williams responded that she spoke with the City Attorney who took the position that if any information in a "supplemental report" would interfere with or jeopardize the investigation of the police department, then that additional information should not be released. She went on to state that determination could only be made by the SSPD. (Copies of the email correspondence reference herein is attached hereto as Exhibit "B").

18. Counsel for the Newspaper then sent a demand letter on February 14, 2023 to the City Attorney requesting the additional information required to be produced

under the Open Records' Act, and citing authority for the same. A copy of the demand letter is attached hereto as Exhibit "C."

19. The city attorney, Daniel W. Lee, responded with an email stating incorrectly that the Newspaper has not requested any arrest reports, initial or supplements to the initial arrest reports. The city attorney then further replied that reports are exempt that concern an open investigation, and that supplemental reports are used by the Police Department "to record and file matters gained during the open investigation," and that the "when the case is closed the file and reports are available." A copy of the City Attorney's response is attached hereto as Exhibit "D."

II. CAUSES OF ACTION

20. Pursuant to O.C.G.A. § 50-18-73(a), this Court has jurisdiction to enforce compliance by a public agency, such as the City of Sandy Springs with the requirements of the Open Records Act.

21. Initial incident and arrest reports are subject to disclosure under the Georgia Open Records Act, and there is no authority which allows the City of Sandy Springs to fail to make them available upon request. See O.C.G.A. § 50-18-72(a)(4). (See also *Atlanta Journal and Constitution, et. al v. City of Brunswick, et al*, 265 Ga. 413, 415 (1995), ("the entirety of an initial arrest, accident or incident report would not be exempted from disclosure under subsection (a) (4), even if that report is part of a 'pending investigation or prosecution' ").²

² The Newspaper acknowledges that certain personal identity information can be redacted as provided in O.C.G.A. § 50-18-72(a)(20).

22. The City of Sandy Springs has rejected requests from the Newspaper for police officer's narratives that should be contained in the incident and arrest reports under the Georgia Open Records Act. The City's failure to make the records available is contrary to law and the Newspaper is entitled to recover its attorney's fees and expenses as provided in O.C.G.A. § 50-18-73(b).

WHEREFORE, Plaintiff prays as follows:

- (a) That the Court order that the records sought by the Newspaper from the City of Sandy Springs be made available without redacted or truncated narratives for inspection under the Open Records Act;
- (b) That Plaintiff recover its attorney's fees and costs of the Defendant as provided in O.C.G.A. § 50-18-73(b);
- (c) That the Court issue a Rule Nisi setting a date and time upon which the Defendant shall appear to show cause, if any it can, why the relief requested in this Complaint should not be granted.
- (d) That the Plaintiff have such other and further relief as to which it may be justly and lawfully entitled.

This 11th day of May 2023.

/s/ Brooks K. Hudson
BROOKS K. HUDSON
Georgia Bar No. 141621

DAVID E. HUDSON
Georgia Bar No. 374450
Attorneys for the Plaintiff Newspaper

Hull Barrett, P.C.
P. O. Box 1564
Augusta, GA 30903-1564
Phone: 706-722-4481
Fax: 706-722-9779
DHudson@hullbarrett.com
BHudson@hullbrrett.com

IN THE SUPERIOR COURT FOR THE
COUNTY OF FULTON, STATE OF GEORGIA

APPEN MEDIA GROUP, INC. d/b/a
Sandy Springs Crier

Plaintiff,

v.

THE CITY OF SANDY SPRINGS,
GEORGIA. d/b/a The Sandy Springs
Police Department,

Defendant.

CIVIL ACTION
FILE NO. _____

VERIFICATION

Personally appeared before me, the undersigned officer, duly appointed to administer oaths, **Carl Appen** in his capacity as Director of Content & Development for Appen Media Group, Inc., ("Appen Media") who, having been duly sworn, deposes and states that he is authorized to make this Verification on Appen Media's behalf, and that he has personal knowledge of the facts set forth in Appen Media's Verified Complaint against the City of Sandy Springs, Georgia for violations of the Open Records Act.

These facts are true and correct to his knowledge based upon personal information and on belief.

By:

Carl Appen 5/8/23
Carl Appen

Title: Director of Content & Development
Appen Media Group, LLC

Sworn to and subscribed before me this

8th day of May, 2023.

Heidi S. Alatar
Notary Public, State of Georgia

My commission expires: NOV 18, 2024

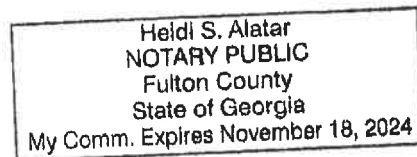


EXHIBIT “A”

INCIDENT DATA		INCIDENT/INVESTIGATION REPORT															
		Agency Name <i>Sandy Springs Police Department</i>					Case# <i>2023-000190</i>										
		ORI <i>GA 0605600</i>					Date / Time Reported <i>01/05/2023 23:37 Thu</i>										
		Location of Incident <i>1455 JOHNSON FERRY RD/GLENRIDGE PL,</i>					Gang Relat <i>NO</i>	Premise Type <i>Highway/road/alley/st</i>		Zone/Beat <i>S1</i>		Last Known Secure <i>01/05/2023 23:37 Thu</i>					
MO	#1	Crime Incident(s) <i>Weapon Law Violations</i> <i>WE16-11-120</i>				(Com)	Weapon / Tools <i>None</i>				Activity <i>P</i>						
							Entry		Exit		Security						
	#2	Crime Incident <i>Fleeing/attempting To Elude Police</i> <i>FL40-6-395</i>				(Com)	Weapon / Tools <i>None</i>				Activity <i>N</i>						
												Entry		Exit		Security	
VICTIM	#3	Crime Incident <i>Traffic Offense</i> <i>TITLE 40</i>				(Com)	Weapon / Tools <i>None</i>				Activity						
							Entry		Exit		Security						
# of Victims <i>1</i> Type: SOCIETY/PUBLIC Injury: Domestic: NO																	
V1 Victim/Business Name (Last, First, Middle) <i>State Of Georgia</i> Victim of Crime # <i>1,2,3</i> DOB <i>Age</i> Race Sex Relationship To Offender Resident Status Military Branch/Status																	
Home Address																	
Employer Name/Address																	
VYR Make Model Style Color Lic/Lis VIN																	
OTHERS INVOLVED	CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)																
	Type:																
	Injury:																
	Code	Name (Last, First, Middle)				Victim of Crime #	DOB	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status					
							Age										
	Home Address						Email				Home Phone						
	Employer Name/Address						Business Phone				Mobile Phone						
	Type:																
	Injury:																
	Code	Name (Last, First, Middle)				Victim of Crime #	DOB	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status					
						Age											
Home Address						Email				Home Phone							
Employer Name/Address						Business Phone				Mobile Phone							
PROPERTY	1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)																
	VI #	Code	Status	Frm/Tc	Value	OJ	QTY	Property Description			Make/Model		Serial Number				
		13	EVID		\$0.00		1	FIREARMS			380/RUGER/Lcp		372370975				
		59	EVID		\$0.00		1	FIREARM ACCESSORIES			RUGER/Magazine						
		77	EVID		\$0.00		2	OTHER			DEFTUN/Msrx6						
		09	EVID		\$0.00		28	CREDIT/DEBIT CARDS			MISC/Misc						
		59	EVID		\$0.00		6	FIREARM ACCESSORIES			380/LIVE/Rounds						
		20	SAFE		\$6,800.00		6.800	MONEY									
		75	EVID		\$0.00		1	PORTABLE ELECTRONIC COMMUNICATIONS			IPHONE						
		75	EVID		\$0.00		1	PORTABLE ELECTRONIC COMMUNICATIONS			IPAD						
		03	DAMA		\$0.00		1	2019 BLK , TDA3726 GA			LAMO Urus		ZPBUA1ZL3KLA03387				
	Officer/ID# <i>(FDY0382)</i>																
Invest ID# <i>(0069)</i>																	
Supervisor <i>(0029)</i>																	
Status	Complainant Signature					Case Status <i>Cleared By Arrest</i>			Case Disposition: <i>01/06/2023</i>			Page 1					

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-000190

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

Suspect Hate / Bias Motivated: *NONE (NO BIAS)*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000190

Sandy Springs Police Department

NARRATIVE

On January 6, 2023, I observed a black suv driving at a high rate of speed on Glenridge Drive.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-000190

1	Name (Last, First, Middle) <i>DEMPS, JASON C</i>					Also Known As					Home Address <i>17014 130TH AVE # 1A - 1A JAMAICA, NY 11434</i>																																													
	Business Address																																																							
	DOB <i>1983</i>	Age <i>39</i>	Race <i>B</i>	Sex <i>M</i>	Eth <i>U</i>	Hgt <i>601</i>	Wgt <i>200</i>	Hair <i>BRO</i>	Eye <i>BRO</i>	Skin <i>MED</i>	Driver's License / State <i>NY</i>																																													
	Scars, Marks, Tattoos, or other distinguishing features																																																							
<table border="1"> <tr> <td colspan="2"><i>Reported Suspect Detail</i></td> <td colspan="2">Suspect Age</td> <td>Race</td> <td>Sex</td> <td>Eth</td> <td colspan="2">Height</td> <td colspan="2">Weight</td> <td colspan="3">SSN</td> </tr> <tr> <td colspan="2">Weapon, Type</td> <td colspan="2">Feature</td> <td colspan="2">Make</td> <td colspan="2">Model</td> <td colspan="2">Color</td> <td>Caliber</td> <td colspan="3">Dir of Travel Mode of Travel</td> </tr> <tr> <td colspan="3">Veh Yr / Make / Model</td> <td>Drs</td> <td colspan="2">Style</td> <td colspan="2">Color</td> <td colspan="3">Lic Plate / State</td> <td colspan="3">VIN</td> </tr> </table>															<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN			Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel			Veh Yr / Make / Model			Drs	Style		Color		Lic Plate / State			VIN		
<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																													
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel																																													
Veh Yr / Make / Model			Drs	Style		Color		Lic Plate / State			VIN																																													
Notes										Physical Char																																														

Incident Report Related Vehicle List

Sandy Springs Police Department

OCA: 2023-000190

1	VehYr/Make/Model 2019 LAMO, Urus			Style MP		Color BLK		Lic/Lis TDA3726 GA 2023			VIN ZPBUA1ZL3KLA03387	
	IBR Status Damage To Property			Date 01/05/2023		Location 1455 JOHNSON FERRY RD/GLENRIDGE PL, SANDY SPRINGS GA						
	Condition		Value \$0.00			Offense Code 520		Jurisdiction Locally		State #		NIC #
	Name (Last, First, Middle) Jcy Enterprises Inc,					Also Known As			Home Address			
	Business Address											
DOB / /		Age	Race	Sex	Hgt	Wgt	Scars, Marks, Tattoos, or other distinguishing features					

Notes

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000190

1 Property Description FIREARMS				Make RUGER		Model LCP		Caliber 380	
Color Black		Serial No. 372370975		Value \$0.00		Qty 1.000		Unit Locally	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C				DOB /1983		Age 39		Race B	
								Sex M	

Notes

2 Property Description FIREARM ACCESSORIES				Make RUGER		Model MAGAZINE		Caliber	
Color		Serial No.		Value \$0.00		Qty 1.000		Unit Locally	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C				DOB /1983		Age 39		Race B	
								Sex M	

Notes

3 Property Description OTHER				Make DEFTUN		Model MSRX6		Caliber	
Color Silver Or		Serial No.		Value \$0.00		Qty 2.000		Unit Locally	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C				DOB 1983		Age 39		Race B	
								Sex M	

Notes

credit card scanners

4 Property Description CREDIT/DEBIT CARDS				Make MISC		Model MISC		Caliber	
Color		Serial No.		Value \$0.00		Qty 28.000		Unit Locally	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C				DOB /1983		Age 39		Race B	
								Sex M	

Notes

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000190

5 Property Description FIREARM ACCESSORIES				Make LIVE		Model ROUNDS		Caliber 380	
Color		Serial No.		Value \$0.00		Qty 6.000		Unit	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C		DOB /1983		Age 39		Race B		Sex M	

Notes

6 Property Description MONEY				Make		Model		Caliber	
Color		Serial No.		Value \$6,800.00		Qty 6.800		Unit	
Status Safekeeping		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C		DOB 1983		Age 39		Race B		Sex M	

Notes

7 Property Description PORTABLE ELECTRONIC COMMUNICATIONS				Make IPHONE		Model		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C		DOB 1983		Age 39		Race B		Sex M	

Notes

8 Property Description PORTABLE ELECTRONIC COMMUNICATIONS				Make IPAD		Model		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Evidence		Date 01/05/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Demps, Jason C		DOB /1983		Age 39		Race B		Sex M	

Notes

I N C I D E N T D A T A	Agency Name <i>Sandy Springs Police Department</i>		INCIDENT/INVESTIGATION REPORT				Case# <i>2023-000245</i>					
	ORI <i>GA 0605600</i>						Date / Time Reported <i>01/07/2023 00:49 Sat</i>					
	Location of Incident <i>400SB/HAMMOND DR, Sandy Springs GA 30328</i>		Gang Relat <i>NO</i>	Premise Type <i>Highway/road/alley/st</i>	Zone/Beat <i>S4</i>	Last Known Secure <i>01/07/2023 00:49 Sat</i>						
						At Found <i>01/07/2023 00:49 Sat</i>						
M O V I C T I M	#1	Crime Incident(s) <i>Street Racing And Reckless Driving Exhibitions - SR38-66</i>		(Com)	Weapon / Tools				Activity			
					Entry		Exit		Security			
	#2	Crime Incident		()	Weapon / Tools				Activity			
					Entry		Exit		Security			
	#3	Crime Incident		()	Weapon / Tools				Activity			
					Entry		Exit		Security			
O T H E R I N V O L V E D	MO											
	# of Victims <i>1</i>		Type: SOCIETY/PUBLIC		Injury:				Domestic: NO			
	V1	Victim/Business Name (Last, First, Middle) <i>State Of Georgia</i>			Victim of Crime # <i>1,</i>	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
	Home Address					Email				Home Phone		
	Employer Name/Address					Business Phone				Mobile Phone		
	VYR	Make	Model	Style	Color	Lic/Lis		VIN				
P R O P E R T Y	CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)											
	Type:		Injury:									
	Code	Name (Last, First, Middle)			Victim of Crime #	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
	Home Address					Email				Home Phone		
	Employer Name/Address					Business Phone				Mobile Phone		
	Type:		Injury:									
Code	Name (Last, First, Middle)			Victim of Crime #	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status		
Home Address					Email				Home Phone			
Employer Name/Address					Business Phone				Mobile Phone			
S T A T U S	1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)											
	VI #	Code	Status Fm/Tc	Value	OJ	QTY	Property Description		Make/Model		Serial Number	
		02	IMPD	\$0.00		1	2016 PLE, 6U43Y1 TN		PORS 911		WP0AF2A94GS187219	
S T A T U S	Officer/ID# <i>(0353)</i>											
	Invest ID# <i>(0)</i>						Supervisor <i>(0168)</i>					
	Complainant Signature				Case Status <i>Cleared By Arrest</i>		<i>01/07/2023</i>		Case Disposition:		Page 1	

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-000245

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0250),

(0350),

(0338)

Suspect Hate / Bias Motivated: NONE (NO BLAS)

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000245

Sandy Springs Police Department

NARRATIVE

On 1-7-2023, I conducted a traffic stop on 400 South near Hammond Drive.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-000245

1	Name (Last, First, Middle)					Also Known As					Home Address																																																																									
	SINGLETON, ROBERT STORMEY										1050 LENOX PK BLVD NE - 16103 ATLANTA, GA 30319																																																																									
	Business Address																																																																																			
	DOB	Age	Race	Sex	Eth	Hgt	Wgt	Hair	Eye	Skin	Driver's License / State																																																																									
	1984	38	B	M	N	600	165	BRO	BRO		JA																																																																									
Scars, Marks, Tattoos, or other distinguishing features																																																																																				
<table border="1"> <tr> <td colspan="2">Reported Suspect Detail</td> <td colspan="2">Suspect Age</td> <td>Race</td> <td>Sex</td> <td>Eth</td> <td colspan="2">Height</td> <td colspan="2">Weight</td> <td colspan="3">SSN</td> </tr> <tr> <td colspan="2">Weapon, Type</td> <td colspan="2">Feature</td> <td colspan="2">Make</td> <td colspan="2">Model</td> <td colspan="2">Color</td> <td>Caliber</td> <td colspan="3">Dir of Travel</td> </tr> <tr> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td></td> <td colspan="3">Mode of Travel</td> </tr> <tr> <td colspan="4">Veh Yr / Make / Model</td> <td>Drs</td> <td colspan="2">Style</td> <td colspan="2">Color</td> <td colspan="3">Lic Plate / State</td> <td colspan="2">VIN</td> </tr> <tr> <td colspan="4"></td> <td></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="3"></td> <td colspan="2"></td> </tr> </table>															Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN			Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel														Mode of Travel			Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN															
Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																																																									
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel																																																																									
											Mode of Travel																																																																									
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN																																																																								
Notes							Physical Char																																																																													

Incident Report Related Vehicle List

Sandy Springs Police Department

OCA: 2023-000245

1	VehYr/Make/Model 2016 PORS, 911		Style		Color PLE		Lic/Lis 6U43Y1 TN 2023		VIN WP0AF2A94GS187219	
	IBR Status Vehicle Impound		Date 01/07/2023		Location 7840 ROSWELL RD, SANDY SPRINGS GA					
	Condition		Value \$0.00		Offense Code 90C		Jurisdiction Locally		State # NIC #	
	Name (Last, First, Middle) Singleton, Robert Stormey				Also Known As				Home Address 1050 LENOX PK BLVD NE - 16103 ATLANTA, GA 30319	
	Business Address									
DOB 1984	Age 38	Race B	Sex M	Hgt 600	Wgt 165	Scars, Marks, Tattoos, or other distinguishing features				

Notes

INCIDENT DATA		INCIDENT/INVESTIGATION REPORT																	
		Agency Name <i>Sandy Springs Police Department</i>					Case# <i>2022-012249</i>												
		ORI <i>GA 0605600</i>					Date / Time Reported <i>10/29/2022 01:55 Sat</i>												
		Location of Incident <i>4344 PARKSIDE PL, Sandy Springs GA 30342</i>					Last Known Secure <i>10/29/2022 01:45 Sat</i>												
		Gang Relat		Premise Type		Zone/Beat		At Found											
		NO		Single Family		S1		<i>10/29/2022 01:55 Sat</i>											
#1		Crime Incident(s) <i>Loitering And Prowling LP38-63</i>				(Com)		Weapon / Tools <i>None</i>			Activity								
								Entry		Exit		Security							
#2		Crime Incident				()		Weapon / Tools			Activity								
								Entry		Exit		Security							
#3		Crime Incident				()		Weapon / Tools			Activity								
								Entry		Exit		Security							
MO																			
VICTIM		# of Victims <i>1</i>		Type: BUSINESS		Injury:				Domestic: NO									
		V1		Victim/Business Name (Last, First, Middle) <i>AVISTELE AT ANDALUSIA A</i>				Victim of Crime # <i>1,</i>		DOB <i>Age</i>		Race Sex		Relationship To Offender		Resident Status		Military Branch/Status	
				Home Address <i>225 FRANKLIN RD NE, Sandy Springs, GA 30342-</i>				Email				Home Phone							
				Employer Name/Address				Business Phone				Mobile Phone							
				VYR		Make		Model		Style		Color		Lic/Lis		VIN			
OTHERS INVOLVED		CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)																	
		Type: INDIVIDUAL(NON LE)																	
		Code RP		Name (Last, First, Middle) <i>WHITLEY, MEGAN ELIZABETH</i>				Victim of Crime #		DOB <i>1988</i>		Race Sex <i>W F</i>		Relationship To Offender		Resident Status <i>Non-Resident</i>		Military Branch/Status	
										<i>Age 33</i>									
				Home Address <i>4312 VINSANTO WAY SUMMERFIELD, NC</i>				Email				Home Phone							
				Employer Name/Address				Business Phone				Mobile Phone							
PROPERTY		Type:																	
		Injury:																	
		Code		Name (Last, First, Middle)				Victim of Crime #		DOB <i>Age</i>		Race Sex		Relationship To Offender		Resident Status		Military Branch/Status	
				Home Address				Email				Home Phone							
				Employer Name/Address				Business Phone				Mobile Phone							
PROPERTY		1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)																	
		VI #		Code		Status Frm/Tc		Value		OJ		QTY		Property Description		Make/Model		Serial Number	
		Officer/ID# <i>(0322)</i>																	
		Invest ID# <i>(0)</i>																	
		Supervisor <i>(0044)</i>																	
Status		Complainant Signature				Case Status <i>Cleared By Arrest</i>				Case Disposition:				Page 1					
						<i>10/29/2022</i>													

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2022-012249

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0364),

(0368)

Suspect Hate / Bias Motivated: *NONE (NO BIAS)*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2022-012249

Sandy Springs Police Department

NARRATIVE

On October 29, 2022 at 0157 hours I responded to 4344 Parkside Pl in Sandy Springs, Fulton County GA in reference to a suspicious activity.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2022-012249

1	Name (Last, First, Middle) <i>HUFF, NATHAN</i>					Also Known As					Home Address <i>2641 PLANTATION DR ATLANTA, GA 30344</i>																																													
	Business Address																																																							
	DOB <i>1979</i>	Age <i>43</i>	Race <i>B</i>	Sex <i>M</i>	Eth <i>N</i>	Hgt <i>000</i>	Wgt <i>145</i>	Hair <i>BRO</i>	Eye <i>UNK</i>	Skin	Driver's License / State <i>GA</i>																																													
	Scars, Marks, Tattoos, or other distinguishing features																																																							
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<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																													
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel																																													
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN																																												
Notes										Physical Char																																														

		INCIDENT/INVESTIGATION REPORT										Case# 2022-012409	
		Agency Name Sandy Springs Police Department		ORI GA 0605600		Date / Time Reported 11/01/2022 17:30 Tue		Last Known Secure 11/01/2022 17:30 Tue		At Found 11/01/2022 17:30 Tue			
I N C I D E N T D A T A	Location of Incident 5470 GLENRIDGE DR, Sandy Springs GA 30342				Gang Relat UNK	Premise Type Apartment		Zone/Beat S4					
	#1	Crime Incident(s) Theft-by Receiving TH16-8-7				(Com)	Weapon / Tools None				Activity P		
							Entry		Exit		Security		
	#2	Crime Incident Obstruction OB16-10-24(A)				(Com)	Weapon / Tools None				Activity P		
						Entry		Exit		Security			
	#3	Crime Incident				()	Weapon / Tools				Activity		
						Entry		Exit		Security			
MO													
V I C T I M	# of Victims 2		Type: SOCIETY/PUBLIC				Injury: Domestic: NO						
	V1	Victim/Business Name (Last, First, Middle) State Of Georgia				Victim of Crime # 2	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
	Home Address						Email				Home Phone		
	Employer Name/Address						Business Phone				Mobile Phone		
	VYR	Make	Model	Style	Color	Lic/Lis	VIN						
O T H E R S I N V O L V E D	CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)												
	Type: BUSINESS Injury:												
	V2	Name (Last, First, Middle) CARMAX				Victim of Crime # 1,	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
	Home Address 12800 TUCKAHOE CREEK PKWY RICHMOND, VA 23238						Email				Home Phone		
	Employer Name/Address						Business Phone				Mobile Phone		
	Type: Injury:												
		Name (Last, First, Middle)				Victim of Crime #	DOB Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
	Home Address						Email				Home Phone		
	Employer Name/Address						Business Phone				Mobile Phone		
P R O P E R T Y	1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)												
	VI #	Code	Status Frm/Tc	Value	OJ	QTY	Property Description		Make/Model		Serial Number		
	2	02	IMPD	\$0.00		1	2018 BLK, 068384 GA		AUDI S5		WAUC4CF5XJA060723		
Officer/ID# (0250)													
Invest ID# (0)						Supervisor (0168)							
Status	Complainant Signature				Case Status Cleared By Arrest		11/01/2022		Case Disposition:		Page 1		

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2022-012409

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0288), (0168), (0254), (0069), (0069),
 (0056), (0241), (0217), (0029), (0371), CANNON,
 (0092), (0092), (0375), (0336), (0311),
 (0337), (0356)

Suspect Hate / Bias Motivated: NONE (NO BIAS)

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2022-012409

Sandy Springs Police Department

NARRATIVE

On 11/1/2022 SSPD responded to a call for service for an illegal parking. A male was taken into custody for a stolen vehicle.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2022-012409

1	Name (Last, First, Middle) <i>SANFORD, AMIR KHAM</i>						Also Known As				Home Address <i>2095 WINSBURG WAY NW KENNESAW, GA 30144</i>																																									
	Business Address																																																			
	DOB <i>/1999</i>	Age <i>23</i>	Race <i>B</i>	Sex <i>M</i>	Eth <i>N</i>	Hgt <i>510</i>	Wgt <i>174</i>	Hair <i>BRO</i>	Eye <i>BRO</i>	Skin <i>LBR</i>	Driver's License / State <i>GA</i>																																									
	Scars, Marks, Tattoos, or other distinguishing features																																																			
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<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																									
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel																																									
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State		VIN																																									
Notes							Physical Char																																													

Incident Report Related Vehicle List

Sandy Springs Police Department

OCA: 2022-012409

1	VehYr/Make/Model 2018 AUDI, S5		Style 2T		Color BLK		Lic/Lis 068384 GA 2023		VIN WAUC4CF5XJA060723		
	IBR Status Vehicle Impound		Date 11/01/2022		Location 5470 GLENRIDGE DR, SANDY SPRINGS GA						
	Condition OPERATIONAL		Value \$0.00		Offense Code 280		Jurisdiction Locally		State # NIC #		
	Name (Last, First, Middle) Carmax,				Also Known As			Home Address 12800 TUCKAHOE CREEK PKWY RICHMOND, VA 23238			
	Business Address										
DOB / /		Age	Race	Sex	Hgt	Wgt	Scars, Marks, Tattoos, or other distinguishing features				

Notes

INCIDENT DATA		INCIDENT/INVESTIGATION REPORT											
		Agency Name <i>Sandy Springs Police Department</i>					Case# <i>2023-000011</i>						
		ORI <i>GA 0605600</i>					Date / Time Reported <i>01/01/2023 06:36 Sun</i>						
		Location of Incident <i>5501 GLENRIDGE DR Apt. 701, Sandy Springs</i>					Last Known Secure <i>01/01/2023 06:10 Sun</i>						
		Gang Relat		Premise Type <i>Apartment</i>		Zone/Beat <i>S1</i>		At Found <i>01/01/2023 06:36 Sun</i>					
#1	Crime Incident(s) <i>Aggravated Assault</i>		(Com)		Weapon / Tools <i>Personal Weapons</i>				Activity				
	Entry		Exit		Security								
	AGA16-5-21												
#2	Crime Incident		()		Weapon / Tools				Activity				
	Entry		Exit		Security								
#3	Crime Incident		()		Weapon / Tools				Activity				
	Entry		Exit		Security								
MO													
VICTIM	# of Victims <i>1</i>		Type: INDIVIDUAL(NON LE)				Injury: Apparent Minor Injury						
	V1		Victim/Business Name (Last, First, Middle) <i>WARE, KENDRAINA FA'TISH</i>				Victim of Crime # <i>1,</i>		DOB <i>/1998</i>		Resident Status <i>Resident</i>		
			Age <i>24</i>		Race <i>B</i>		Sex <i>F</i>		Relationship To Offender <i>1BG</i>		Military Branch/Status		
	Home Address						Email				Home Phone		
	Employer Name/Address						Business Phone				Mobile Phone		
	VYR		Make		Model		Style		Color		Lic/Lis		
OTHERS INVOLVED	CODES: V- Victim (Denote V2, V3) W1 = Witness IO = Involved Other RP = Reporting Person (if other than victim)												
	Type: _____ Injury: _____												
	Code		Name (Last, First, Middle)				Victim of Crime #		DOB		Resident Status		
			Age		Race		Sex		Relationship To Offender		Military Branch/Status		
	Home Address						Email				Home Phone		
	Employer Name/Address						Business Phone				Mobile Phone		
	Type: _____ Injury: _____												
	Code		Name (Last, First, Middle)				Victim of Crime #		DOB		Resident Status		
			Age		Race		Sex		Relationship To Offender		Military Branch/Status		
	Home Address						Email				Home Phone		
Employer Name/Address						Business Phone				Mobile Phone			
PROPERTY	1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)												
	V1 #		Code		Status Frm/Tc		Value		OJ		QTY		
Officer/ID# <i>(0360)</i>													
Invest ID# <i>(0)</i>													
Supervisor <i>(0091)</i>													
Status		Complainant Signature				Case Status <i>Cleared By Arrest</i>				Case Disposition: <i>01/01/2023</i>			
										Page 1			

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-000011

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0091),

(0091),

(0297),

(0286),

(0359)

Suspect Hate / Bias Motivated: *NONE (NO BIAS)*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000011

Sandy Springs Police Department

NARRATIVE

On 01 Jan 2023, at approximately 0645hrs, I responded to 5501 Glenridge Dr, Apt 701, Sandy Springs, GA, in reference to an active disturbance.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-000011

1	Name (Last, First, Middle) <i>JONES, NICKOLAS JULIAN</i>						Also Known As				Home Address																																													
	Business Address																																																							
	DOB <i>1980</i>	Age <i>42</i>	Race <i>B</i>	Sex <i>M</i>	Eth <i>N</i>	Hgt <i>511</i>	Wgt <i>185</i>	Hair <i>BRO</i>	Eye <i>BRO</i>	Skin <i>FAR</i>	Driver's License / State <i>GA</i>																																													
	Scars, Marks, Tattoos, or other distinguishing features																																																							
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<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																													
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel																																													
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State		VIN																																													
Notes							Physical Char																																																	

Incident Report Related Vehicle List

Sandy Springs Police Department

OCA: 2023-000011

1	VehYr/Make/Model 2022 TESL, Model 3		Style 4S		Color SILV		Lic/Lis CVF5702 GA 2023		VIN 5YJ3E1EA9NF372483		
	IBR Status None		Date 01/01/2023		Location 5501 GLENRIDGE DR, SANDY SPRINGS GA						
	Condition		Value \$0.00		Offense Code 13A		Jurisdiction Locally		State # NIC #		
	Name (Last, First, Middle) Hertz,				Also Known As				Home Address		
	Business Address										
DOB / /		Age	Race	Sex	Hgt	Wgt	Scars, Marks, Tattoos, or other distinguishing features				

Notes

INCIDENT DATA

Case#	2023-000016		
Date / Time Reported	01/01/2023	10:40	Sun
Last Known Secure	01/01/2023	10:40	Sun
At Found	01/01/2023	10:40	Sun

	Activity
Security	

MCV
I
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I
M

OTHERS INVOLVED

PROPERTY

Officer/ID#		(0326)	
Invest ID#		(0)	
Complainant Signature		Supervisor	(0176)
Case Status Cleared By Arrest	01/01/2023	Case Disposition:	Page 1

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-000016

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0091),

(0296)

Suspect Hate / Bias Motivated: NONE (NO BLAS)

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000016

Sandy Springs Police Department

NARRATIVE

On 1/1/2023 at approximately 1040hrs I was flagged down by a residence at 6355 Peachtree Dunwoody Rd in reference to a indecent exposure call.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-000016

1	Name (Last, First, Middle)					Also Known As					Home Address																																																																									
	CARTER, THORNTON																																																																																			
	Business Address																																																																																			
	DOB	Age	Race	Sex	Eth	Hgt	Wgt	Hair	Eye	Skin	Driver's License / State																																																																									
	996	26	I	M		507	200	BLK	HAZ																																																																											
Scars, Marks, Tattoos, or other distinguishing features																																																																																				
<table border="1"> <tr> <td colspan="2">Reported Suspect Detail</td> <td colspan="2">Suspect Age</td> <td>Race</td> <td>Sex</td> <td>Eth</td> <td colspan="2">Height</td> <td colspan="2">Weight</td> <td colspan="3">SSN</td> </tr> <tr> <td colspan="2">Weapon, Type</td> <td colspan="2">Feature</td> <td colspan="2">Make</td> <td colspan="2">Model</td> <td colspan="2">Color</td> <td>Caliber</td> <td colspan="3">Dir of Travel</td> </tr> <tr> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="2"></td> <td></td> <td colspan="3">Mode of Travel</td> </tr> <tr> <td colspan="4">Veh Yr / Make / Model</td> <td>Drs</td> <td colspan="2">Style</td> <td colspan="2">Color</td> <td colspan="3">Lic Plate / State</td> <td colspan="2">VIN</td> </tr> <tr> <td colspan="4"></td> <td></td> <td colspan="2"></td> <td colspan="2"></td> <td colspan="3"></td> <td colspan="2"></td> </tr> </table>															Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN			Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel														Mode of Travel			Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN															
Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN																																																																									
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel																																																																									
											Mode of Travel																																																																									
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN																																																																								
Notes							Physical Char																																																																													

INCIDENT DATA		INCIDENT/INVESTIGATION REPORT										Case# 2023-000023	
		Agency Name Sandy Springs Police Department		ORI GA 0605600		Date / Time Reported 01/01/2023 17:01 Sun		Last Known Secure 01/01/2023 17:01 Sun		At Found 01/01/2023 17:01 Sun			
		Location of Incident 55 NORTHWOOD DR, Sandy Springs GA 30350			Gang Relat NO	Premise Type Highway/road/alley/st		Zone/Beat S2					
MO	#1	Crime Incident(s) Robbery-armed Robbery R16-8-41			(Com)	Weapon / Tools Handgun			Activity				
						Entry		Exit		Security			
	#2	Crime Incident Wanted Person Located 99025			(Com)	Weapon / Tools None			Activity				
						Entry		Exit		Security			
	#3	Crime Incident			()	Weapon / Tools			Activity				
						Entry		Exit		Security			
Suspect Actions/Snatches Property, Suspect Actions/Takes Personal Property From V, Suspects Knowledge/Complainant Knew Syspect													
VICTIM	# of Victims 2		Type: INDIVIDUAL(NON LE)			Injury: Apparent Minor Injury			Domestic: NO				
	V1		Victim/Business Name (Last, First, Middle) HERNANDEZ, JUAN A			Victim of Crime # 1	DOB 1992	Race W	Sex M	Relationship To Offender 1FR,2FR	Resident Status Resident	Military Branch/Status	
			Home Address					Email			Home Phone		
			Employer Name/Address					Business Phone 678-663-7803			Mobile Phone		
		VYR	Make	Model	Style	Color	Lic/Lis		VIN				
OTHERS INVOLVED	CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)												
	Type: SOCIETY/PUBLIC Injury:												
	Code V2	Name (Last, First, Middle) State of Georgia			Victim of Crime # 2,	DOB / /	Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
			Home Address					Email			Home Phone		
			Employer Name/Address					Business Phone			Mobile Phone		
	Type: Injury:												
	Code	Name (Last, First, Middle)			Victim of Crime #	DOB	Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status	
			Home Address					Email			Home Phone		
			Employer Name/Address					Business Phone			Mobile Phone		
	PROPERTY	I = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)											
VI #		Code	Status Frm/Tc	Value	OJ	QTY	Property Description			Make/Model		Serial Number	
		13	EVID	\$1.00		1	FIREARMS			9/GLOCK/17		BFKG823	
		59	EVID	\$0.00		1	FIREARM ACCESSORIES			GLOCK/Magazine			
		59	EVID	\$1.00		16	FIREARM ACCESSORIES			9/ROUNDS/Live			
		13	EVID	\$0.00		1	GLOCK 17 - COPELAND 25 ON SLIDE			9/GLOCK/17		BFYG823	
		59	EVID	\$0.00		1	GLOCK MAGAZINE			9/GLOCK 17/Magazine			
		59	EVID	\$0.00		16	9MM ROUNDS - 8 BALL & 8 HOLLOW POINT			9/BULLETS			
		75	SAFE	\$0.00		1	PORTABLE ELECTRONIC COMMUNICATIONS			CELLPHONE			
		80	SAFE	\$0.00		1	KNIFE			FOLDING Knife			
		77	SAFE	\$0.00		1	POWER PLUG			CHARGING Block			
		77	SAFE	\$0.00		1	POWER CABLE			CHARGING Cable			
		75	SAFE	\$0.00		1	PORTABLE ELECTRONIC COMMUNICATIONS			CELLPHONE			
		75	SAFE	\$0.00		1	EAR PODS			EAR PODS			
Officer/ID# (0375) Outstanding Stolen Val [Total Stolen]: \$43.00 [\$43.00]													
Invest ID# (0) Supervisor (0029)													
Status	Complainant Signature			Case Status Cleared By Arrest			01/01/2023			Case Disposition:		Page 1	

Incident Report Additional Property List

Sandy Springs Police Department

OCA: 2023-000023

Property List (Continued)

Page 2

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

VI #	Code	Status Frm/To	Value	OJ	QTY	Property Description	Make/Model	Serial Number
15	77	SAFE	\$0.00		1	KEY	KEY	
	17	EVID	\$0.00		1	GOLD CHAIN - COPELAND 25	CHAIN/Necklace	
	17	EVID	\$0.00		0	BRACELET	BRACELET	
	1	20	7		\$43.00	1	MONEY	

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-000023

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

(0092), (0029), (0360), (0347), (0286), (0347), (0374), (0275),

Suspect Hate / Bias Motivated: *NONE (NO BIAS)*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-000023

Sandy Springs Police Department

NARRATIVE

On January 1, 2023, at approximately 1703, I responded to 55 Northwood Dr in reference to a robbery just occurred call.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-000023

1	Name (Last, First, Middle) <i>HERNANDEZ-NAVA, DANIEL</i>						Also Known As				Home Address			
	Business Address													
	DOB <i>1998</i>	Age <i>24</i>	Race <i>W</i>	Sex <i>M</i>	Eth <i>H</i>	Hgt <i>507</i>	Wgt <i>130</i>	Hair <i>BLK</i>	Eye <i>BRO</i>	Skin <i>LGT</i>	Driver's License / State <i>GA</i>			
Scars, Marks, Tattoos, or other distinguishing features														

<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN		
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel		
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State		VIN		
Notes							Physical Char						

2	Name (Last, First, Middle) <i>GARCIA GUZMAN, VICTOR A</i>						Also Known As <i>GARCIA, VICTOR A; GARCIA GUZMAN, GUZMAN, VICTOR</i>				Home Address			
	Business Address <i>DAY LABORER 470-569-4218</i>													
	DOB <i>1996</i>	Age <i>26</i>	Race <i>W</i>	Sex <i>M</i>	Eth <i>N</i>	Hgt <i>509</i>	Wgt <i>140</i>	Hair <i>BLK</i>	Eye <i>BRO</i>	Skin <i>OLV</i>	Driver's License / State <i>GA</i>			
Scars, Marks, Tattoos, or other distinguishing features														

<i>Reported Suspect Detail</i>		Suspect Age		Race	Sex	Eth	Height		Weight		SSN		
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel		
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State		VIN		
Notes							Physical Char						

Conversation, Polite
Conversation, Silent
Hair Length, Short
Hands, RIGHT HANDED
Jacket, Jacket
Pants/dress/skirt, blue jeans
Shirt/blouse, Long Sleeves
Shoes, Tennis
Speech, Foreign-spanish
Substance Use, ILLEGAL DRUGS
Build, THIN

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000023

1 Property Description FIREARMS				Make GLOCK		Model 17		Caliber 9	
Color Black/Gray		Serial No. BFKG823		Value \$1.00		Qty 1.000		Unit Locally	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) * No name *				DOB		Age		Race	
								Sex	

Notes

2 Property Description FIREARM ACCESSORIES				Make GLOCK		Model MAGAZINE		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit Locally	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) * No name *				DOB		Age		Race	
								Sex	

Notes

3 Property Description FIREARM ACCESSORIES				Make ROUNDS		Model LIVE		Caliber 9	
Color		Serial No.		Value \$1.00		Qty 16.000		Unit Locally	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) * No name *				DOB		Age		Race	
								Sex	

Notes

4 Property Description GLOCK 17 - COPELAND 25 ON SLIDE				Make GLOCK		Model 17		Caliber 9	
Color Black		Serial No. BFYG823		Value \$0.00		Qty 1.000		Unit Locally	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel				DOB 1998		Age 24		Race W	
								Sex M	

Notes

Weapon has the word "Copeland 25" inscribed on it.

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000023

5 Property Description GLOCK MAGAZINE				Make GLOCK 17		Model MAGAZINE		Caliber 9	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel				DOB 1998		Age 24		Race W	
								Sex M	

Notes

6 Property Description 9MM ROUNDS - 8 BALL & 8 HOLLOW POINT				Make BULLETS		Model		Caliber 9	
Color		Serial No.		Value \$0.00		Qty 16.000		Unit	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel				DOB 1998		Age 24		Race W	
								Sex M	

Notes

All are live rounds

7 Property Description PORTABLE ELECTRONIC COMMUNICATIONS				Make CELLPHONE		Model		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel				DOB 1998		Age 24		Race W	
								Sex M	

Notes

8 Property Description KNIFE				Make FOLDING		Model KNIFE		Caliber	
Color Pink		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel				DOB /1998		Age 24		Race W	
								Sex M	

Notes

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000023

9 Property Description POWER PLUG				Make CHARGING		Model BLOCK		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel		DOB 1998		Age 24		Race W		Sex M	

Notes

10 Property Description POWER CABLE				Make CHARGING		Model CABLE		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez-nava, Daniel		DOB '1998		Age 24		Race W		Sex M	

Notes

11 Property Description PORTABLE ELECTRONIC COMMUNICATIONS				Make CELLPHONE		Model		Caliber	
Color Black		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Garcia Guzman, Victor A		DOB 1996		Age 26		Race W		Sex M	

Notes

12 Property Description EAR PODS				Make EAR PODS		Model		Caliber	
Color White		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Garcia Guzman, Victor A		DOB 1996		Age 26		Race W		Sex M	

Notes

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-000023

13 Property Description KEY				Make KEY		Model		Caliber	
Color Gold		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Safekeeping		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Garcia Guzman, Victor A				DOB /1996		Age 26		Race W	
								Sex M	

Notes

14 Property Description GOLD CHAIN - COPELAND 25				Make CHAIN		Model NECKLACE		Caliber	
Color Gold		Serial No.		Value \$0.00		Qty 1.000		Unit	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Garcia Guzman, Victor A				DOB 1996		Age 26		Race W	
								Sex M	

Notes

Gold chain with diamonds and the word "Copeland 25" written out.

15 Property Description BRACELET				Make BRACELET		Model		Caliber	
Color Gold		Serial No.		Value \$0.00		Qty 0.000		Unit	
Status Evidence		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Garcia Guzman, Victor A				DOB 1996		Age 26		Race W	
								Sex M	

Notes

16 Property Description MONEY				Make		Model		Caliber	
Color		Serial No.		Value \$43.00		Qty 1.000		Unit	
Status Stolen		Date 01/01/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Hernandez, Juan A				DOB 1992		Age 30		Race W	
								Sex M	

Notes

INCIDENT DATA

INVOLVEDPROPERTY

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-002392

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

SMITH, D.K. (0370)

Suspect Hate / Bias Motivated: NONE (NO BIAS)

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-002392

Sandy Springs Police Department

NARRATIVE

On 03/03/2023 at approximately 0010 hours I was dispatched to a dispute call at 1165 Springwood Connector apartment 344.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-002392

1	Name (Last, First, Middle)					Also Known As					Home Address				
	WALLS, MACHION DEANDRE`										4045 ANNEEWAKEE RD DOUGLASVILLE, GA 30135				
	Business Address														
DOB		Age	Race	Sex	Eth	Hgt	Wgt	Hair	Eye	Skin	Driver's License / State				
[REDACTED] 1997		25	B	M	N	508	135	BRO	BRO		[REDACTED] GA				
Scars, Marks, Tattoos, or other distinguishing features															
Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN				
Weapon, Type		Feature		Make		Model		Color		Caliber		Dir of Travel			
												Mode of Travel			
Veh Yr / Make / Model				Drs	Style		Color		Lic Plate / State			VIN			
Notes								Physical Char							

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-002392

1 Property Description COMPUTER HARDWARE/SOFTWARE				Make APPLE		Model MAC BOOK		Caliber	
Color		Serial No.		Value \$600.00		Qty 1.000		Unit	
Status Destroyed/damaged/vand		Date 03/03/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Coleman, Dernado Jovonte		DOB ██████/1989		Age 33		Race B		Sex M	

Notes

2 Property Description RADIOS/TV/DVD/VCR				Make SONY		Model TV		Caliber	
Color		Serial No.		Value \$600.00		Qty 1.000		Unit	
Status Destroyed/damaged/vand		Date 03/03/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Coleman, Dernado Jovonte		DOB ██████/1989		Age 33		Race B		Sex M	

Notes

3 Property Description PORTABLE ELECTRONIC COMMUNICATIONS				Make APPLE		Model IWATCH		Caliber	
Color		Serial No.		Value \$500.00		Qty 1.000		Unit	
Status Safekeeping		Date 03/03/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Walls, Machion Deandre`		DOB ██████/1997		Age 25		Race B		Sex M	

Notes

4 Property Description COMPUTER HARDWARE/SOFTWARE				Make APPLE		Model MAC BOOK		Caliber	
Color		Serial No.		Value \$600.00		Qty 1.000		Unit	
Status Safekeeping		Date 03/03/2023		NIC #		State #		Local #	
Name (Last, First, Middle) Walls, Machion Deandre`		DOB ██████/1997		Age 25		Race B		Sex M	

Notes

Incident Report Related Property List

Sandy Springs Police Department

OCA: 2023-002392

5 Property Description RECORDINGS AUDIO/VIDEO				Make APPLE		Model AIR PODS		Caliber					
Color		Serial No.		Value \$300.00		Qty 1.000		Unit		Jurisdiction Locally			
Status Safekeeping		Date 03/03/2023		NIC #		State #		Local #		OAN			
Name (Last, First, Middle) Walls, Machion Deandre`						DOB [REDACTED] 1997		Age 25		Race B		Sex M	

Notes

6 Property Description BACK PACK				Make		Model		Caliber					
Color Blue		Serial No.		Value \$100.00		Qty 1.000		Unit		Jurisdiction Locally			
Status Safekeeping		Date 03/03/2023		NIC #		State #		Local #		OAN			
Name (Last, First, Middle) Walls, Machion Deandre`						DOB [REDACTED] 1997		Age 25		Race B		Sex M	

Notes

INCIDENT/INVESTIGATION REPORT

I N C I D E N T D A T A	Agency Name Sandy Springs Police Department		Case# 2023-002448						
	ORI GA 0605600								
	Location of Incident 806 HAMPTON DR, Sandy Springs GA 30350								
	Gang Relat NO		Premise Type Apartment	Zone/Beat N3	Date / Time Reported 03/04/2023 04:31 Sat				
Last Known Secure 03/04/2023 04:31 Sat		At Found 03/04/2023 04:31 Sat							
M O	#1	Crime Incident(s) Simple Assault SA16-5-20	(Com)	Weapon / Tools	Activity				
				Entry	Exit				
				Security					
	#2	Crime Incident	()	Weapon / Tools	Activity				
				Entry	Exit				
				Security					
	#3	Crime Incident	()	Weapon / Tools	Activity				
				Entry	Exit				
				Security					
V I C T I M	# of Victims 1		Type: INDIVIDUAL(NON LE)		Injury: None	Domestic: YES			
	V1	Victim/Business Name (Last, First, Middle) STEPHENSON, ALICIA M	Victim of Crime # 1,	DOB 1995	Race B	Sex F	Relationship To Offender 1BG	Resident Status Resident	Military Branch/Status
	Home Address 806 HAMPTON DRIVE, Sandy Springs, GA 30350-			Email		Home Phone			
	Employer Name/Address			Business Phone		Mobile Phone			
	VYR	Make	Model	Style	Color	Lic/Lis	VIN		
	CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim) Type: INDIVIDUAL(NON LE) Injury:								
	Code IO	Name (Last, First, Middle) CHAPMAN, TIAUNIA LATRICE	Victim of Crime #	DOB 1994	Race B	Sex F	Relationship To Offender	Resident Status Non-Resident	Military Branch/Status
	Home Address 1740 CENTURY CIR NE APT 1206 ATLANTA, GA 30345			Email		Home Phone			
	Employer Name/Address			Business Phone		Mobile Phone			
	Type: Injury: Code Name (Last, First, Middle) Victim of Crime # DOB Race Sex Relationship To Offender Resident Status Military Branch/Status Age								
Home Address			Email		Home Phone				
Employer Name/Address			Business Phone		Mobile Phone				
O T H E R S I N V O L V E D	1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown ("OJ" = Recovered for Other Jurisdiction)								
	VI #	Code	Status Frm/Tc	Value	OJ	QTY	Property Description	Make/Model	Serial Number
Officer/ID# CRAMER, N. J. (0380)									
Invest ID# (0)					Supervisor CANNON, K. K. (0092)				
Status	Complainant Signature			Case Status Cleared By Arrest		03/04/2023		Case Disposition:	
Page 1									

INCIDENT/INVESTIGATION REPORT

Sandy Springs Police Department

Case # 2023-002448

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

D R U G S	IBR	Status	Quantity	Type Measure	Suspected Type	

Assisting Officers

HUDSON, J. (0112), MEYERHOFF, D.C. (0340), MARKEY, M.E. (0373), CRAMER, N.J. (0380)

Suspect Hate / Bias Motivated: *NONE (NO BLAS)*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 2023-002448

Sandy Springs Police Department

NARRATIVE

on 03/04/2023 at 04:31 hours I was dispatched to a domestic at 806 Hampton Dr.

Incident Report Suspect List

Sandy Springs Police Department

OCA: 2023-002448

1	Name (Last, First, Middle)					Also Known As					Home Address																																																																													
	GIWA, MUYEES F										806 HAMPTON DR SANDY SPRINGS, GA 30350																																																																													
	Business Address																																																																																							
	DOB	Age	Race	Sex	Eth	Hgt	Wgt	Hair	Eye	Skin	Driver's License / State																																																																													
	1987	36	B	M	N	505	135	BLK	BLK	MED	GA																																																																													
Scars, Marks, Tattoos, or other distinguishing features																																																																																								
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EXHIBIT “B”

Brooks K. Hudson

From: Carl Appen <carl@appenmedia.com>
Sent: Wednesday, February 8, 2023 11:00 AM
To: Brooks K. Hudson; David E. Hudson
Cc: Hans Appen; Carl Appen
Subject: Fw: Appen Media - Incident Reports

Carl Appen
Director of Content & Development
770.442.3278 ext. 102 ■ carl@appenmedia.com
319 North Main Street, Alpharetta GA 30009



From: Williams, Kathy <kathy.williams@sandyspringsga.gov>
Sent: Friday, December 2, 2022 10:36 AM
To: Carl Appen <carl@appenmedia.com>
Subject: RE: Appen Media - Incident Reports

Mr. Appen,

I spoke with the City Attorney. He believes it is clear the intent of the Open Records Act is to allow initial information to be released and not anything that would jeopardize the investigation. His position is that if information in the "supplemental/additional report" would jeopardize the investigation or interfere with victims or witnesses, it should not be released.

Whether or not the information would jeopardize the investigation is something only PD can determine.

Best regards,

Kathy

From: Carl Appen <carl@appenmedia.com>
Sent: Thursday, December 1, 2022 8:12 AM
To: Williams, Kathy <kathy.williams@sandyspringsga.gov>
Subject: Re: Appen Media - Incident Reports

You don't often get email from carl@appenmedia.com. [Learn why this is important](#)

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I understand, thanks for the clarification. It is absolutely the position that was expressed to us.

Attached is the best I can do for putting something together. You'll notice that it doesn't include the AG's opinion. I went back and forth with Forsyth County in a similar, though not exactly the same, discussion a few weeks ago. Eventually I had to turn to the AG's office, who then spoke with the county attorney directly. After that conversation, the county provided the documents we were seeking. Since then they have provided full incident reports.

So unfortunately it does not lay out the state's opinion, other than to enforce its earlier guidance that,

"Initial incident and police arrest reports are subject to the Act's disclosure requirements, regardless of whether they are art of an active investigation. Additionally, any report, whether entitled a 'supplemental report,' 'narrative report,' or similar document name that is produced as part of an initial incident report or can be characterized as such, is likewise to be disclosed."

Please let me know soon. I only ask for expediency because we go to press tomorrow and I'd like to include as up to date information as possible.

Thanks,
Carl

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From: Williams, Kathy <kathy.williams@sandyspringsga.gov>
Sent: Wednesday, November 30, 2022 11:09 PM
To: Carl Appen <carl@appenmedia.com>
Subject: RE: Appen Media - Incident Reports

I have not yet. I need to speak with the City Attorney, but he is out of the office. I should see him tomorrow.

One point of clarification on the text of your e-mail to me yesterday. I did not mean to confirm it is the City's position that those parts of the reports are exempt under the Open Records Act. I meant only to say that I understood that you believe it is our police department's position.

I further understood that you were going to send me what you stated to be Georgia state opinions interpreting the provision you cited in your e-mail that would support your position. Please provide those to me so I may discuss with the City Attorney.

Thank you,

Kathy

From: Carl Appen <carl@appenmedia.com>
Sent: Wednesday, November 30, 2022 5:03 PM
To: Williams, Kathy <kathy.williams@sandyspringsga.gov>
Subject: Re: Appen Media - Incident Reports

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Hi Kathy,

I'm wondering if you have an update on the below. I ask because I received another batch of incident reports that only include the one-line investigative report.

Thanks,
Carl

Carl Appen
Director of Content & Development
770.442.3278 ext. 102 ■ carl@appenmedia.com
319 North Main Street, Alpharetta GA 30009



From: Carl Appen
Sent: Tuesday, November 29, 2022 10:43 AM
To: kwilliams@sandyspringsga.gov <kwilliams@sandyspringsga.gov>
Subject: Appen Media - Incident Reports

Hi Kathy,

Following up on our call yesterday. I have attached for you two incident reports in question. One from a closed investigation, which includes an officer narrative and supplemental report, and one from an open investigation, which only includes a one-line investigation report.

As I mentioned on the phone, we are seeking the entirety of the Sandy Springs PD's initial incident report. We were told by the police records office, and briefly confirmed by you, that the city's position is that part of those reports are exempt from the ORA.

As I mentioned on the phone, here is the relevant section from the Blue Book:

"Initial incident and police arrest reports are subject to the Act's disclosure requirements, regardless of whether they are art of an active investigation. Additionally, any report, whether entitled a 'supplemental report,' 'narrative report,' or similar document name that is produced as part of an initial incident report or can be characterized as such, is likewise to be disclosed."

Please advise.

Carl

Carl Appen

Director of Content & Development
770.442.3278 ext. 102 ■ carl@appenmedia.com
319 North Main Street, Alpharetta GA 30009



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EXHIBIT “C”



HULL BARRETT

A T T O R N E Y S

AUGUSTA AIKEN EVANS

BROOKS K. HUDSON

• LICENSED IN GEORGIA

BHUDSON@HULLBARRETT.COM

February 14, 2023

VIA EMAIL AND U.S. MAIL

dlee@fmglaw.com

Dan Lee, Esq.,

Attorney for the City of Sandy Springs

Freeman, Mathis & Gary, LLC

100 Galleria Parkway

Suite 1600

Atlanta, GA 30339-5948

kathy.williams@sandyspringsga.gov

Kathy Williams, Esq.

Staff Attorney, City of Sandy Springs

1 Galambos Way

Sandy Springs, GA 30328

**RE: Open Records Request of Incident Reports from the City of
Sandy Springs**

Dear Dan and Kathy:

Our firm represents Appen Media Group ("AMG"). We have been retained to assist AMG in the present dispute with the City of Sandy Springs (the "City") concerning the City's reluctance to provide the entirety of initial incident reports and police arrest reports ("Reports") to AMG despite AMG's lawful open records request for the same.

AMG has been requesting these Reports from the City and have been receiving one sentence descriptions in response. I have attached some examples with this correspondence as Exhibit "A."

WWW.HULLBARRETT.COM

HULL BARRETT, PC, 801 BROAD STREET, 7TH FLOOR AUGUSTA, GEORGIA 30901

TELEPHONE: (706) 722-4481 FAX: (706) 722-9779

{01818583-1}

00633281-1

MAILING ADDRESS: POST OFFICE BOX 1564, AUGUSTA, GEORGIA 30903-1564

Despite AMG's many requests to provide the supplemental reports that accompany the initial incident report, the City is refusing to provide them. It is our understanding that the City is taking the position that "supplemental" or "narrative" reports do not have to be produced since these cases are still pending, despite the fact that they pertain to the initial incident report. Your rationale is that producing said reports would "jeopardize the investigation" of these matters. (See a copy of email correspondence with Ms. Williams, attached hereto as Exhibit "B").

As an initial matter, incident and arrest reports are subject to disclosure under the Georgia Open Records Act, and there is no authority which allows the City to fail to make them available upon request. See O.C.G.A. § 50-18-72(a)(4). (See also *Atlanta Journal and Constitution, et. al v. City of Brunswick, et al*, 265 Ga. 413, 415 (1995), ("the entirety of an initial arrest, accident or incident report would not be exempted from disclosure under subsection (a) (4), even if that report is part of a 'pending investigation or prosecution' ").¹

In further support of AMG's position, I direct you to an excerpt from "A Law Enforcement Officer's Guide to Open Records in Georgia," put together by the Georgia Attorney General's Office, the Georgia Association of Chiefs of Police, the Georgia Bureau of Investigation, the Georgia Sheriff's Association, the Georgia Department of Public Safety, amongst other organizations:

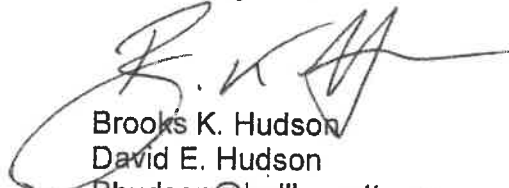
Regarding Initial Incident reports: "Initial incident reports and police arrest reports are subject to the [Open Records] Act's disclosure requirement, regardless of whether they are part of an active investigation. Additionally, any report entitled a 'supplemental report,' 'narrative report,' or similar document name that is produced as part of an initial incident report or can be characterized as such, is likewise to be disclosed." See O.C.G.A. §§ 40-5-2(b), 50-18-72(a)(4); (a)(4); Napper v. Georgia Television, 257 Ga. 156 (1987); Atlanta Journal and Constitution, et al v. City of Brunswick, et al, 265 GA. 413 (1995).

In summation, the City has rejected requests from AMG for police officer's narratives that should be contained in the incident and arrest reports under the Georgia Open Records Act. The City's failure to make the records available is contrary to Georgia law and should this matter proceed to litigation, the Newspaper would be entitled to recover its attorney's fees and expenses as provided in O.C.G.A. § 50-18-73(b).

¹ AMG acknowledges that certain personal identity information can be redacted as provided in O.C.G.A. § 50-18-72(a)(20).

This letter is to give the City a final opportunity to provide the requested documentation. AMG will allow ten business days for that process to take place before it seeks judicial assistance. Please let us hear from you as to whether the documents will be provided as requested. That way AMG will know whether additional steps will need to be taken.

Kindest regards,



Brooks K. Hudson
David E. Hudson
Bhudson@hullbarrett.com
Dhudson@hullbarrett.com

BKH/II

cc: *Appen Media Group*

EXHIBIT “D”

Brooks K. Hudson

From: Daniel W. Lee <dlee@fmglaw.com>
Sent: Tuesday, February 21, 2023 10:22 AM
To: Brooks K. Hudson
Subject: IN RE: Letter of February 14, 2023

Brooks

This is a response on behalf of the City of Sandy Springs to your Open Records Request letter concerning Appen Media.

The City has produced all documents responsive to Appen Media's request for supplements to any initial incident reports. To my knowledge Appen has not requested any arrest reports, initial or supplements to the initial arrest reports. You have confused the use of the term "supplemental" as used in the Georgia Open Records Law with a separate nomenclature use in the software of the PD's reporting and filing system. Under the Ga. ORR law the City is required to make available to the public supplements to the initial report, NOT supplemental reports. Ga ORR law clearly exempts reports dealing with an open investigation. The PD uses supplemental reports to record and file matters gained during the open investigation. The purpose for this exemption is to protect the public in allowing PD to investigate in private. When the case is closed the file and reports are available. If there is a supplement to the initial report, as an example, the address of the incident is learned, that would be added as a supplement to the initial report. It is apparent Appen believes that more information is required in the initial incident report but Georgia Law does not support that requirement.

If you have questions please feel free to reach out to me. The City prides itself on transparency and has not encountered this complaint from any other outlet.

Sincerely,
Daniel W. Lee
City Attorney

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